Mr King— The States will be prejudiced and divided into parties by it— In Philada. & New York, It will be referred to the establishment of a Bank, which has been a subject of contention in those Cities. In other places it will be referred to mercantile monopolies.

Mr. Wilson mentioned the importance of facilitating by canals, the communication with the Western Settlements— As to Banks he did not think with Mr. King that the power in that point of view would excite the prejudices & parties apprehended. As to mercantile monopolies they are already included in the power to regulate trade.

Col: Mason was for limiting the power to the single case of Canals. He was afraid of monopolies of every sort, which he did not think were by any means already implied by the Constitution as supposed by Mr. Wilson.

The motion being so modified as to admit a distinct question specifying & limited to the case of canals.

N— H— no— Mas. no. Ct. no— N— J— no— Pa ay. Del. no — Md. no. Va. ay. N— C— no— S— C. no— Geo. ay. [Ayes — 3; noes — 8.]

The other part fell of course, as including the power rejected.

Mr. Madison & Mr. Pinkney then moved to insert in the list of powers vested in Congress a power — "to establish an University, in which no preferences or distinctions should be allowed on account of religion."[10]

Mr Wilson supported the motion

Mr Govr Morris. It is not necessary. The exclusive power at the Seat of Government, will reach the object.

On the question

N. H. no— Mas. no. Cont. divd. Dr. Johnson ay— Mr. Sherman no. N. J— no. Pa ay. Del. no. Md. no. Va. ay. N— C— ay— S— C— ay. Geo— no. [Ayes — 4; noes — 6; divided — 1.]

Col: Mason, being sensible that an absolute prohibition of standing armies in time of peace might be unsafe, and wishing at the same time to insert something pointing out and

[10] See Appendix A, CCLV, CCCXC.